

Siya Ram v. State of U.P. — recovery citation; liberty under clause 6.14

Allahabad High Court · Division Bench · 14 July 2015 · WRIT - C No. 38249 of 2015 · **Writ disposed of; liberty to represent under clause 6.14.**

HEADNOTE

A writ challenging a recovery citation for electricity dues, the consumer offering to pay in instalments, is disposed of with liberty to represent under clause 6.14 of the U.P. Electricity Supply Code, 2005. The Executive Engineer, DGM and General Manager may grant instalment facility to consumers in financial distress; the representation is to be decided in accordance with law, preferably within one month.

FACTUAL SUMMARY

Siya Ram challenged a 23 June 2015 citation issued by respondent no. 2 for recovery of Rs.1,68,556 towards electricity consumption. He offered to deposit the entire sum in instalments. Counsel for the Corporation pointed out that clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer, DGM and General Manager to grant instalments to consumers in financial distress, and that the petitioner could approach those authorities with a representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for dues

HOLDING

Clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer, DGM and General Manager to extend instalment facility to consumers in financial distress. A writ challenging a recovery citation, where the consumer offers to pay in instalments, is disposed of with liberty to represent under that clause; the authority shall decide the representation in accordance with law, preferably within one month. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A writ challenging a recovery citation for electricity dues, the consumer offering to pay in instalments, is disposed of with liberty to represent under clause 6.14 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION AND WHETHER INSTALMENTS SHOULD BE GRANTED

The Court did not examine the 23.06.2015 citation on merits and left entitlement to instalments to the clause 6.14 authority. ¶ 1